CORAM: IN THE DISTRICT COURT "B" HELD ON MONDAY THE 26TH DAY OF MAY 2025 BEFORE HER WORSHIP ANNETTE SOPHIA ESSEL (MRS.) SITTING AS MAGISTRATE

SUIT NO: GR/AM/DC/A2/216/23

ESTHER AMO YEBOAH **PLAINTIFF**
OF OPAH

VRS.

VERONICA DUFIE NKANSAH **DEFFENDANT**
OF AMASAMAN

JUDGMENT

INTRODUCTION:

By a Writ of Summons filed in the registry of the court on 30th June, 2023, the Plaintiff seeks the following reliefs against the defendant:

i. A declaration that the defendant has breached the contract between parties.
ii. An order for the recovery of the sum of Twenty-Three Thousand Seventy-Six Cedis and Seventy-Four Pesewas (GH¢ 23, 076.74) only.
iii. An order for the plaintiff to pay the interest.
iv. An order for damages for the breach of contract by the defendant.
v. Cost.

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CASE OF THE PLAINTIFF:

It is the claim of Plaintiff that she secured a loan of Twenty Thousand Cedis (GH¢20,000.00) only in May, 2022 which same amount she furnished Defendant as a loan with an agreement for same to be paid within a reasonable time yet Defendant has failed to honour her word leading to hardship being suffered by Plaintiff. As at the date of the commencement of this suit the amount outstanding stood at Twenty-Three Thousand and Seventy-Six Cedis Seventy-Four Pesewas (GH¢23,076.74) only for Plaintiff to defray.

CASE OF THE DEFENDANT:

It is also the contention of the Defendant that indeed the Plaintiff advanced Twenty Thousand Eight Hundred Cedis (GH¢20,800.00) only to her with an agreement for same to be repaid over a period of six (6) years at a monthly repayment rate of Eight Hundred and Thirty Two Cedis (GH¢ 832,000.00) only.

Defendants states that following receipt and two months of diligently complying with the payment plan, the Plaintiff unceremoniously demanded the payment of the gross loan amount which same she struggled in repayment of same.

All told, the Defendant does not deny her indebtedness but states that she has paid to date Thirteen Thousand Three Hundred and Twelve Cedis (GH¢13,312.00) only by of sixteen (16) installment payments by mobile money transfer to Plaintiff at a monthly rate of Eight Hundred and Twenty Two Cedis (GH¢822, 00.00) only thus the claim of Plaintiff ought to be refused. Attempts at settlement between parties broke down so the court proceeded to hear the matter.

ISSUES FOR DETERMINATION BY THE COURT:

At the close of Hearing, the issues for determination were as follows:

i. Whether or not the Defendant had breached their contract

ii. The level of indebtedness of Defendant to the Plaintiff.

BURDEN OF PROOF:

Indeed, it is the policy of the law this being a civil suit, that only those issues which are germane to the determination of a case must be decided by the court and not irrelevant issues although the parties might have led evidence on them. In the case of **Domfe v. Adu (1984-86) 1 GLR 653** Abban JA. stated that:

> *"I have to state that the primary facts which a trial judge may find as having been proved to his satisfaction are those necessary to establish the claim of a party or in some cases the defence and which have been alleged on one side and controverted on the other. It must also be borne in mind that the trial judge is not required to make findings of fact in respect of irrelevant matters on which the parties have led evidence when such findings would not assist in the determination of the issues involved in the case."*

See also the case of **Fattal v. Wolley [2013-2014] 2 SCGLR 1070** the dictum of Georgina Wood (Mrs.), C J at page 1076, "The law is trite and same supported by statute that for a court to decide a case one way or the other, each party to the suit must adduce evidence on the issues to be determined by the court to the standard prescribed by law. In proving any matter that is in contention at a trial, a party is required to produce credible evidence. The credible evidence may take the form of oral testimony or documentary evidence or a corroborative evidence or a combination of all". This position is supported by various provisions of **The Evidence Act, 1975 (NRCD 323). Section 14** of which provides:

> *"(14). Except as otherwise provided by law, unless and until it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence he is asserting".*

The concept of the burden of persuasion mentioned in Section 14 of NRCD 323 quoted above, in relation to claims in civil litigation, is itself explained in **Section 10 (1) and 2(b) of The Evidence Act,1975 (NRCD 323).** These provisions read as follows:

10. Burden of persuasion defined.

(1) For the purposes of this Act, the burden of persuasion means the obligation of a party to establish a requisite degree of belief concerning a fact in the mind of the tribunal of fact or the Court.

(2) The burden of persuasion may require a party;

(b) To establish the existence or non-existence of a fact by a preponderance of the probabilities or by proof beyond a reasonable doubt.

The process of establishing "the existence or non-existence of a fact by a preponderance of the probabilities" itself casts a burden on the proponent to produce evidence which is also defined or explained in **Section 11 of The Evidence Act,1975 (NRCD 323)** which states that:

11. Burden of producing evidence defined;

(1) For the purposes of this Act, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid a ruling on the issue against that party.

(4) In other circumstances the burden of producing evidence requires a party to produce sufficient evidence which on the totality of the evidence, leads a reasonable mind to conclude that the existence of the fact was more probable than its non-existence.

And, finally, **Section 17 of The Evidence Act, 1975 (NRCD 323)** states that:

17. Allocation of burden of producing evidence;

Except as otherwise provided by law,

(a) The burden of producing evidence of a particular fact is on the party against whom a finding on that fact would be required in the absence of further proof;

(b) The burden of producing evidence of a particular fact is initially on the party with the burden of persuasion as to that fact.

In the wise words of Ackaah-Boafo J. (as he then was) in the case of: **Madam Felicia**

> *"The matter of proof based on the above sections of the Evidence Act, has become a hackneyed principle in civil cases that the authorities on this area of law are too numerous to state and the cases have interpreted the above provisions of the law, being NRCD 323. In* ***Ababio v Akwasi 111 [1994-95] Ghana Bar Report, Part 11, 74*** *the court stated that a party whose pleadings raise an issue essential to the success of the case assumes the burden of proving such issue. See also* ***Re Ashalley Botwe Lands: Adjetey Agbosu & Ors v Kotey & Ors. [2003-04] SCGLR 420*** *which further elucidate the burden of proof as statutorily provided."*

EVIDENCE ADDUCED BY PLAINTIFF:

The Plaintiff avers that she is civil servant resident at Sapeiman. She says that she the Defendant have thirty years of childhood friendship and also that they hail from the same town. Plaintiff claims that in May, 2022 she served as a guarantor for the Defendant to secure a loan of Twenty Thousand Eight Hundred Cedis (GH¢20,800.00) only from IZWE Savings and Loans. Plaintiff claims that following the crediting of this money into her account, she voluntarily advanced the money to Defendant as a loan for the completion of Defendant's houses at Opah and Ashalaja. Plaintiff avers that following the completion of these properties, Defendant has let out same to 3rd persons yet has failed to pay off the loan with explanation that she is hard pressed due to the payment of Defendant's wards fees at school.

Plaintiff claimed that she was compelled to service the loan at Eight Hundred and Thirty-Two Cedis (GH¢832.00) only which same she had done for twenty-one month's amounting to Seventeen Thousand Four Hundred Seventy-Two Cedis (GH¢17,472.00) only out of her monthly salary. Plaintiff avers that to date as at February, 2024, the Defendant had paid Fifteen Thousand Two Hundred Twenty-Seven Cedis (GH¢15,227.00) only. Plaintiff avers that as at April, 2024 the loan amount stood at Twenty Thousand Eight Hundred Eight One Cedis and Thirty-Four Pesewas (GH¢20,881.34) only thus Defendant has an outstanding balance to pay her.

EVIDENCE ADDUCED BY DEFENDANT:

The Defendant; a trader and childhood friend of Plaintiff testified under oath that somewhere in the year 2022 the Plaintiff guaranteed a loan of Twenty Thousand Cedis (GH¢20,000.00) only for her at KGL Loan Company Limited which same was to be settled within two years. Strangely however this money was never paid to her and she did not return to the office enquire on the non-payment. However, at a later date, Plaintiff informed her via WhatsApp message that she had received a loan of Twenty Thousand Eight Hundred (GH¢20,800.00) only payable over six (6) years at a monthly rate of Eight Hundred and Thirty-Two Cedis (GH¢ 832.00) only at source from Plaintiff's salary.

Defendant stated that she discussed with Plaintiff to advance this money to her on the same payment terms to which agreed and subsequently transferred the funds. Defendant testified that in fulfillment of their agreement, she paid for two months of the loan amount only for Plaintiff renege on their agreement and demand for full payment on same. Defendant stated that in this direction, she in the company of Plaintiff visited Plaintiff's bank to enquire of the loan outstanding amount which stood at Twenty-Five Thousand Two Hundred and Three Cedis and Twenty-Nine Pesewas (GH¢25,203.29) only. Defendant concluded that she admits her indebtedness to Plaintiff and prays for time to settle same.

ANALYSIS:

The Defendant in this suit admits the loan amount of Twenty Thousand Eight Hundred Cedis (GH¢20,800.00) only advanced by Plaintiff to her. She however, vehemently maintains that she has not breached their oral contract. The duty therefore was on the Plaintiff to prove to the court

that this is so. In the case of **Dzaisu and Others v Ghana Breweries Limited [2007-2008] 1 SCGLR 539 at page 545**, the Supreme Court per Sophia Adinyira (Mrs.) JSC. stated as follows:

> *"It is a basic principle in the law of evidence that the burden of persuasion on proving all facts essential to any claim lies on whosoever is making the claim.*

It is trite learning that in this jurisdiction oral contract are enforceable. The Plaintiff who relies on the verbal contract bears the once of proving its existence and also the breach of same. In support of her averments, Plaintiff tendered Exhibit 'A' and 'B' series which is a copy of loan repayment schedule from Advans Savings and Loans and also her pay slip copies from June, 2022 to February, 2024. The court upon a careful perusal of same observes that in the Exhibit 'A' Plaintiff is described as a guarantor with conditions which same she had signed and is therefore obligated to pay. These exhibits in no way speak to the existence any oral agreement nor of the breach of same. The court consequently holds that Defendant has not breached any oral contract between parties for the repayment of Twenty Thousand and Eight Hundred Cedis GHC 20,800.00) only within any specified time frame.

The next issue to bring finality to this suit is the extent of indebtedness of Defendant to Plaintiff. The Defendant does not deny her indebtedness, to Plaintiff yet is vehemently opposed to the amount coated by Plaintiff as being outstanding. The burden consequently lay on Defendant to prove the monies she had paid to Plaintiff. In the case of **Ackah v Pergah Limited & Others [2010] SCGLR 728** the Supreme Court per Sophia Adinyira (Mrs.) JSC:

> *"It is a basic principle of the law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is varied and it includes the testimonies of the party and material witnesses, admissible hearsay, documentary and things (often described as real evidence), without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the court or tribunal of fact such as a jury. It is trite law that matters that are capable of proof must be proved by producing sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact is more reasonable than its non-existence."*

The Plaintiff in paragraph nine on her Witness Statement stated that Defendant had paid to her via several mobile money transfer transactions an amount of Fifteen Thousand Two Hundred and Twenty-Seven Cedis (GH¢15,227.00) only and per her Exhibit 'C' series which is legible demonstrated that Defendant had paid the said amount.

On the contrary the Defendant maintained or contended that she had paid Thirteen Thousand Three Hundred and Twelve Cedis (GH¢13,312.00) only. In discharging her burden Defendant tendered Exhibit '1' and '2' which in no way speaks to the payment of any payment whatsoever to the Plaintiff. Rather Exhibit 'C' of Plaintiff speaks to the payment of Thirteen Thousand Five Hundred and Six Cedis (GH¢13,560.00) only. The court consequently holds that Defendant to date has paid only Thirteen Thousand Five Hundred and Sixty Cedis (GH¢13,560.00) only to Plaintiff. The outstanding amount owed Plaintiff by Defendant is Eleven Thousand Six Hundred and Forty-Three Cedis and Twenty-Nine Pesewas (GH¢11,643.29) only.

On the preponderance of probabilities judgement is entered in favour of Plaintiff for the recovery of Eleven Thousand Six Hundred and Forty-Three Cedis and Twenty-Nine Pesewas (GH¢11,643.29) only out of the outstanding loan amount of Twenty-Five Thousand Two Hundred and Three Cedis and Twenty-Nine Pesewas (GH¢25,203.29) only as quoted by Defendant in paragraph eleven of her Witness Statement.

Cost of Three Thousand Ghana Cedis (GH¢3,000.00) only is awarded against Defendant in favour of Plaintiff.

(SGD)

H/W ANNETTE SOPHIA ESSEL (MRS.)

(MAGISTRATE)